

26STCV05536 26STCV05536

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MOTION TO COMPEL ARBITRATION

The Court tenders the following

tentative decision in the matter Adam Bullock v. Shye West, Inc., Los Angeles County Superior Court case number 26STCV05536, set for hearing on August 19, 2026. Shye West, Inc. (Defendant) moves for an order compelling Adam Bullock (Plaintiff) to submit to binding arbitration and staying these proceedings in the interim. Plaintiff opposes the motion. The motion is denied.

A. Legal Standard

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement." (Code Civ. Proc. § 1281.2, subds. (a), (b).)

A proceeding to compel arbitration is

in essence a suit in equity to compel specific performance of a contract. (Freeman v. State Farm Mutual Auto Insurance Co. (1975) 14 Cal.3d 473, 479.) Such enforcement may be sought by a party to the arbitration agreement. (Code Civ. Proc., § 1280, subd. (e)(1).) A motion to compel arbitration requires the facts to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (Code Civ. Proc., §1290.2; Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413–414.) The motion must set forth the provisions of the written

agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218.)

Once the moving party alleges that an arbitration agreement exists, the burden shifts to the responding party to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (See *Condee*, supra, 88 Cal.App.4th at p. 219.) However, if the existence of the agreement is challenged, “[movant] bears the burden of proving [the arbitration agreement’s] existence by a preponderance of the evidence.” (Rosenthal, supra, p. 413; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058–1060.)

B. Discussion

Defendant

moves to compel Plaintiff to submit to binding arbitration pursuant to a signed employment agreement. Defendant argues that the agreement is governed by the Federal Arbitration Act (FAA) and that enforcement is thus mandatory. But Defendant must still demonstrate that the parties have entered into a valid agreement to arbitrate. (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1092.) To that end, Plaintiff argues that Defendant has failed to establish the existence of an agreement, that the purported agreement has expired by its own terms, that any agreement was illusory, and that any agreement was unconscionable with provisions that should not be severed. The Court finds that Defendant has failed to establish the material terms of the agreement and therefore denies the Motion.

Plaintiff

argues that Defendant has not demonstrated that an arbitration agreement exists. For a trial court to compel arbitration under Code of Civil Procedure section 1281.2, the moving party first bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Rosenthal, supra, 14 Cal.4th 394 at p. 413.) This burden can be met by attaching a copy of the agreement purporting to be signed by the opposing party. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*).) Alternatively, the moving party may set forth the agreement’s provisions in the motion. (*Ibid.*) If the opposing party disputes the agreement, it bears the burden of producing evidence to challenge its authenticity. (*Ibid.*)

The opposing party may “testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.) In that case, the moving party must then prove the existence of the agreement by a preponderance of the evidence. (Id. at pp. 165–166.)

Here,

Defendant offers evidence that Plaintiff entered a negotiated employment agreement (“Agreement”) with it that contained an arbitration clause. (Keep Decl. ¶ 4.) The employment agreement includes section 4.6, titled “Arbitration.” (Id., Ex. 1.) It states that “[a]ny controversy or dispute arising out of, based upon, or relating to this Agreement, its enforcement or interpretation, or because of an alleged breach, default, or misrepresentation in connection with any of its provisions, or arising out of, based upon, or relating in any way to Employee’s employment or association with Imagine This, or termination of the same, including, without limiting the generality of the foregoing, any questions regarding whether a particular dispute is arbitrable, and any alleged violation of statute, common law or public policy, including, but not limited to, any state or federal statutory claims, shall be submitted to final and binding arbitration.” (Ibid.) Defendant’s President testifies that Plaintiff signed a copy of the agreement on February 14, 2019, and the agreement presented by Defendant bears Plaintiff’s signature. (Id. ¶ 4, Ex. 1.)

Plaintiff

challenges the agreement’s authenticity by identifying that the agreement is missing a page, page 3. Indeed, the attached arbitration agreement skips from page 2 to 4. (Id., Ex. 1.) Defendant argues that it has submitted the entirety of the agreement and that the absence of Page 3 is solely the result of misnumbered pagination. Defendant’s Reply Brief states that the “missing page” is therefore a “red herring” because it “can be seen from the fact that the final sentence on Page 2 of section 4.6 continues from Page 2 to Page 4.” But this explanation is incorrect as the missing page 3 actually covers portions of Section 1.5. Page 2 ends with section 1.5(a) while page 4 begins with section 1.5(e). Thus, it is apparent that sections 1.5(b) through 1.5(d) appeared on the missing Page 3, not section 4.6 as Defendant argues. The Court cannot tell what provisions might be in the missing sections of the agreement and is therefore unable to assess whether any missing terms might be unenforceable or

unconscionable. This is further complicated by Defendant's incorrect argument that the entirety of the agreement has been submitted. The Court finds that Defendant has failed to establish the material terms of the Agreement.

Plaintiff further argues that the agreement expired upon his termination and is thus not binding. The agreement states that "[n]otwithstanding any terms stated herein to the contrary, this Agreement shall commence and be effective on the Effective Date and shall exist for the duration of [Plaintiff's] employment with [Defendant]." (Id., Ex. 1, p. 5.) Plaintiff's employment with Defendant ended on January 8, 2026. (Bullock Decl. ¶ 3.) Thus, the employment agreement terminated on that date. Under the agreement, certain provisions were slated to "survive and continue after any termination of this Agreement." (Keep Decl., Ex. 1, p. 8.) These were limited to "Section 1.5 (Nondisclosure; Confidentiality; Trade Secrets; & Works for Hire), and Section 3 (Release & Waiver)." (Ibid.) Because Defendant has not attached the portion of the agreement covering sections 1.5 (b) through (d) it is not clear what provisions in that section are intended to survive. Moreover, the other section which is said to survive termination is "Section 3 (Release and Waiver)." But Section 3 of the agreement says nothing about "Release and Waiver" so it appears the internal reference is incorrect. This is not a minor point because Defendant is contending that the agreement is clear on what is to survive termination and what is not. Yet, the two items specified to survive are (1) missing terms from the missing page 3 and (2) "Release and Waiver" provisions which are stated in the agreement to be found in section 3 but which are not there (nor, apparently, are they anywhere else). Furthermore, the "survival" provision follows section 4.6, the arbitration provision, yet it is not included as a provision which survives termination of the agreement. Defendant argues that a construction which does not include survival of the arbitration provision is logically inconsistent, because that provision contemplates arbitration of disputes related to the termination of Plaintiff's employment. But it is conceivable that disputes surrounding Plaintiff's potential termination could arise before his termination became effective; such a construction would not render the portion of the arbitration provision related to termination disputes surplusage.

In sum, Defendants have not established the material terms of the Agreement, and their explanation of why it is allegedly in fact complete is demonstrably

incorrect. Moreover, the portions of the Agreement which are included contain incomplete and incorrect internal references on the key issue of what obligations survive termination and which do not. Given this degree of uncertainty, the Court finds Defendants have not satisfied their obligation to prove the material terms of an agreement to arbitrate.

C. Conclusion

Defendant's motion to compel arbitration and stay these proceedings is denied.